

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TEJAS SURYAPRAKASH PADLIYA,

Petitioner

VS.

POONAM RAJVAIDYA,

Respondent

) Case Number: FDI-23-798522

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: ROGER C. CHAN

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Tejas Padliya (Father) and Respondent Poonam Rajvaidya (Mother).
- 2) On 3/17/26, Mother filed a Request for Order seeking \$20,605 in Family Code section 6344 attorney's fees, attached to which is form FL-319 (Request for Attorney's Fees and Costs Attachment).
- 3) On 3/17/26, Mother filed an Income and Expense Declaration.
- 4) There is no Proof of Service on file indicating Mother's 3/17/26 Request for Order and Income and Expense Declaration were served on Father.
- 5) Father did not file a Responsive Declaration.

B. Findings and Order

- 1) There is no proof of service showing that Mother's 3/17/26 Request for Order was served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, the hearing is continued to 7/7/29 at 9 AM in Dept. 403 for Mother to serve Father.

- 1 3) At least 16 Court days prior to the next hearing date, Mother shall file and serve on Father the (a)
2 3/17/26 Request for Order and Income and Expense Declaration, (b) Continuance Order
3 contained herein (FL-309), and (c) Tentative Ruling Instructions using a service method
4 authorized by the Code of Civil Procedure (i.e., a person over the age of 18 shall mail to Father
5 the (a) Request for Order and Income and Expense Declaration, (b) Continuance Order, and (c)
6 Tentative Ruling Instructions, and then Mother shall file form FL-335 (Proof of Service) with the
7 Court confirming service was effectuated).
- 8 4) At least 9 Court days prior to the next hearing date, Father may file and serve a Responsive
9 Declaration.
- 10 5) At least 5 Court days prior to the next hearing date, Mother may file and serve a Reply
11 Declaration.
- 12 6) The Court will prepare the FL-309.